

CHARLES LAGUNA v. CORBIN CLOUGH, et al.

22CV46348

DEFENDANT 'S MOTION FOR ORDER DISMISSING ENTIRE ACTION

This is a quiet title and specific performance action involving an alleged oral promise to make a testamentary gift of real property. There are related coordinated actions (see 22UD13972 and 22PR8530). Before the Court is a Motion to Dismiss after the Court sustained a demurrer to the operative complaint, Order filed 10/17/23, providing plaintiff with thirty (30) days leave to amend. No amended pleading was filed. Plaintiff has not filed an Opposition to Motion.

California Code of Civil Procedure § 581 provides in pertinent part:

* * *

(f) The court may dismiss the complaint as to that defendant when:

...

(2) Except where Section 597 applies, after a demurrer to the complaint is sustained with leave to amend, the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal.

* * *

Upon review of moving documents, and the court file, the Motion for Order Dismissing Entire Action is **GRANTED**.

The Clerk shall provide notice of this Ruling to the parties forthwith. Defendant to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.